

an amendment “open[s] up an entirely new field of inquiry without any satisfactory explanation as to why this major change in point of attack had not been made long before trial.” (*Magpali*, 48 Cal.App.4th 471, 487) or when allowing amendment would result in a delay of trial, loss of critical evidence, or added preparation expenses. (*Solit v. Tokai Bank* (1999) 68 Cal.App.4th 1435, 1448.) But the fact that the amendment involves a change in legal theory, or will cause a more favorable result for the plaintiff, is not prejudice. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490.)

A motion for leave to amend must identify by page, paragraph and line number any additions to and deletions from the prior pleading. (C.R.C. rule 3.1324(a)(2)-(3).) Further, the motion must be accompanied by a declaration and must specify: (1) the effect of the amendment; (2) why the amendment is proper and necessary; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the amendment was not made earlier. (C.R.C. rule 3.1324(b)(1)-(4).)

4.

CASE #	CASE NAME	HEARING NAME
CVRI2507439	CARPENTER vs FCA US LLC	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

Summary of Ruling: The Court grants Moss Bros’ motion as to Plaintiff’s 5th cause of action for negligent repair and stay the action.

Factual / Procedural Context:

Plaintiff Danielle N. Carpenter brings this action concerning a 2022 Jeep Wagoneer leased from Defendant J.A. Moss, Inc. dba Moss Bros Chrysler Dodge Jeep Ram Riverside (“Moss Bros”). The complaint asserts Song-Beverly claims against Defendant FCA US LLC [1st through 4th causes of action], a negligent repair claim against Moss Bros [5th cause of action], and a fraudulent/concealment claim against FCA [6th cause of action]. The negligent repair claim alleges that Moss Bros failed to use ordinary care and skill in storing, preparing, and repairing the vehicle.

Now, Moss Bros moves to compel arbitration of the negligent-repair claim and to stay the action, based on a lease agreement that Plaintiff signed at the time Plaintiff leased her vehicle. Moss Bros attaches a copy of the lease agreement. The agreement requires individual arbitration, at either party’s request, of any controversy between the lessee and lessor, arising out of or relating to the vehicle, the lease, any related agreement, or an alleged tort. Moss Bros also cites an arbitration provision in the warranty booklet with a 30-day opt out provision that was not exercised.

In opposition, Plaintiff argues that Moss Bros did not meet its initial burden to prove an agreement to arbitrate because its evidence does not properly authenticate the lease agreement. Plaintiff further argues that her claim falls outside the scope of the

agreement's provision since a negligent repair claim rests on warranty-repair obligations independent of the lease agreement.

In reply, Moss Bros argues that the lease agreement was authenticated and that Plaintiff's claim falls under the scope of the arbitration provision.

Analysis

The court must grant the petition to compel arbitration unless it finds either: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (Code Civ. Proc., § 1281.2.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.) The petition to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (Cal. Rules of Court, rule 3.1330; see *Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218–219.) This rule does not require the petitioner to authenticate the agreement or do anything more than allege its existence and attach a copy. (*Condee*, supra, 88 Cal.App.4th at 218-219.) Once this is done, the burden shifts to the opposing party to demonstrate the falsity of the purported agreement. (*Condee*, supra, 88 Cal.App.4th at 218-219.)

Here, Moss Bros meets its initial burden of production. In support of its motion, it produces a copy of the Marquis declaration attaching the lease agreement between Plaintiff and Moss Bros. The agreement states, in relevant part:

“Any controversy or claim between or among you and Lessor, including, but not limited to, those arising out of or relating to the Vehicle, this Lease or any related agreement or any claim based on or arising from an alleged tort, shall at the request of either party be determined by individual arbitration . . .” (Marquis Decl., Ex. A, p. 6, § 27.)

Contrary to Plaintiff's argument, Defendant is not required to authenticate the agreement or do anything more than allege its existence and attach a copy. Plaintiff otherwise offers no evidence disputing execution or authenticity. Here, Defendant adequately establishes the existence of a written arbitration agreement between Plaintiff and Moss Bros.

Plaintiff's next argument is that her negligent-repair claim falls outside of the agreement's arbitration provision. This argument also fails. The negligent repair claim here is asserted by the lessee, against the lessor, which alleges a tort arising from repair of the leased vehicle. Section 27 covers “any controversy or claim” between Plaintiff and Moss Bros that arises from or relate to the vehicle, the lease, or any related agreement or any claim based on an alleged tort. (Marquis Decl., Ex. A, p. 6, § 27.) The court therefore enforces that agreement according to its terms.

Plaintiff attempts to rely on the *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122 to defeat the motion. There, the manufacturer (Ford) was not a party to the dealers' sales contracts, and plaintiffs did not expressly agree to arbitrate any dispute with Ford. Therefore, Ford could not invoke those contracts' arbitration provisions as an unnamed third party. (*Id.* at 1128, 1133-36.) Here, by contrast, Moss Bros is a party to the lease agreement and invokes its own arbitration clause as to the sole claim (negligent repair) pled against it. The arbitration clause covers any claim between Plaintiff and Moss Bros relating to the vehicle or arising from an alleged tort. (Marquis Decl., Ex. A, p. 6, § 27.) Accordingly, the claim against Moss Bros falls within the parties' agreement to arbitrate. The court grants Moss Bros' motion as to Plaintiff's 5th cause of action for negligent repair.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2507439	CARPENTER vs FCA US LLC	DEMURRER ON COMPLAINT

Tentative Ruling:

No opposition filed. Motion Granted. Prevailing party to prepare order.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2507439	CARPENTER vs FCA US LLC	MOTION TO STRIKE COMPLAINT

Tentative Ruling:

No opposition filed. Motion granted. Prevailing party to prepare order.

7.

CASE #	CASE NAME	HEARING NAME
CVRI2604533	POWERTOWN SOLAR ELECTRIC, INC. vs COMPLETE SOLAR, INC.	PETITION RE: ARBITRATION AWARD

Tentative Ruling:

No opposition filed. Petition granted. Proposed order to be signed at the hearing.